

CHAPTER 29*Family Allowances and National Insurance Act, 1952***ARRANGEMENT OF SECTIONS****Section**

1. Higher rate of family allowances.
2. Higher rates of contributions under Industrial Injuries Act.
3. Higher rates and amounts of benefit under Industrial Injuries Act.
4. Higher rates of contributions under National Insurance Act, 1946.
5. Higher rates of benefit under National Insurance Act, 1946.
6. Consequential amendments.
7. Supplementary provisions as to certain classes of persons.
8. Provisions as to appointed day.
9. Effect of awards made before, or in respect of period beginning before, appointed or prescribed day.
10. Expenses.
11. Regulations.
12. Short title, construction, citation and extent.

SCHEDULES:

First Schedule—Contribution rates substituted for those contained in Part I of Second Schedule to Industrial Injuries Act.

Second Schedule—Amendments of benefit provisions of Industrial Injuries Act.

Third Schedule—Contribution rates substituted for those contained in First Schedule to National Insurance Act, 1946.

Part I—Employed persons.

Part II—Employers.

Part III—Self-employed persons.

Part IV—Non-employed persons.

Part V—Exchequer supplement.

Fourth Schedule—Benefit rates substituted for those contained in Part I of Second Schedule to National Insurance Act, 1946.

Fifth Schedule—Consequential amendments of Family Allowances Act, 1945, Industrial Injuries Act, National Insurance Act, 1946, and National Insurance Act, 1951.

An Act to provide for increasing rates of allowances under the Family Allowances Act, 1945, and rates or amounts of contributions and benefits under the National Insurance Acts, 1946 to 1951; and for purposes connected with the matters aforesaid.

[26th June, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Higher rate
of family
allowances.

1. Section one of the Family Allowances Act, 1945 (which provides for the payment for every family which includes two or more children of an allowance in respect of each child other than the elder or eldest at the rate of five shillings a week), shall be amended, as from the appointed day, by substituting for the words "five shillings" the words "eight shillings".

2. There shall be substituted, as from the appointed day, for the provisions contained in Part I of the Second Schedule to the National Insurance (Industrial Injuries) Act, 1946 (hereafter in this Act referred to as "the Industrial Injuries Act"), which Part sets out the weekly rates of contributions payable by insured persons and employers, the provisions contained in the First Schedule to this Act.

Higher rates of contributions under Industrial Injuries Act.

3. The provisions of the Industrial Injuries Act set out in the first column of the Second Schedule to this Act (which relate to the rates and amounts of benefit described in the second column of that Schedule) shall be amended, as from the appointed day, by substituting for the words and figures set out in the third column of that Schedule the corresponding words and figures set out in the fourth column thereof.

Higher rates and amounts of benefit under Industrial Injuries Act.

4. As from the appointed day—

(a) there shall be substituted for the provisions contained in the First Schedule to the National Insurance Act, 1946 (which specifies the weekly rates of contributions payable by insured persons and employers and the amounts of the Exchequer supplement), the provisions contained in the Third Schedule to this Act;

Higher rates of contributions under National Insurance Act, 1946.

(b) subsection (4) of section two of the National Insurance Act, 1946 (which substituted new rates of contributions for those originally enacted), shall cease to have effect.

5. There shall be substituted, as from the appointed day, for the provisions contained in Part I of the Second Schedule to the National Insurance Act, 1946 (which sets out rates of periodical benefits and of increases for dependants), the provisions contained in the Fourth Schedule to this Act.

Higher rates of benefit under National Insurance Act, 1946.

6. The provisions of the Family Allowances Act, 1945, the Industrial Injuries Act, the National Insurance Act, 1946, and the National Insurance Act, 1951, set out in the first column of the Fifth Schedule to this Act shall have effect, as from the appointed day, subject to the amendments set out in the second column of that Schedule, being amendments consequential on the amendments made by the preceding provisions of this Act.

Consequential amendments.

7.—(1) Without prejudice to the generality of any power to make regulations under the National Insurance Act, 1946, and to the construction as one with that Act of the provisions of this Act relating thereto—

Supplementary provisions as to certain classes of persons.

(a) the power conferred by subsection (2) of section sixty-five of the National Insurance Act, 1946, to prescribe

modifications of, and additions and exceptions to, the foregoing provisions of that Act, in relation to existing contributors and existing beneficiaries, shall include power to prescribe, in relation to them, modifications of, and additions and exceptions to, any provisions of this Act amending that Act, and such further modifications of, and additions and exceptions to, the foregoing provisions of the National Insurance Act, 1946, as may appear to the Minister to be necessary in consequence of any provision of this Act amending that Act;

- (b) the reference in subsection (2) of section seventy-one of the National Insurance Act, 1946 (which confers power to modify the foregoing sections of that Act in relation to any entrants who are over school leaving age on the appointed day within the meaning of that Act), to the foregoing sections of that Act shall include a reference to any provision of this Act amending that Act;
- (c) the power conferred by subsection (4) of section sixty-nine of the National Insurance Act, 1946, to make provision by regulations for the modifying or winding up, in connection with the passing of that Act, of certain schemes shall include power to make such further provision therefor as appears to the authority by whom the power is exercisable to be necessary in consequence of any provision of this Act amending that Act.

(2) Nothing in the provisions of this Act relating to retirement pensions shall be taken as affecting the provisions of section seventy-four of the National Insurance Act, 1946, relating to non-contributory pensions.

Provisions
as to appointed
day.

8.—(1) In this Act the expression “the appointed day” means, subject to the following provisions of this section, such day as the Minister may by order appoint, and different days may be appointed for different purposes of this Act or for the same purpose in relation to different cases or classes of case.

(2) Any order under this section may, if the day thereby appointed is appointed for some only of the purposes of this Act or in relation only to some cases or classes of case, contain such incidental or supplementary provisions as appear to the Minister to be necessary or expedient as respects the period or any part of the period when this Act is to have a partial operation only and, in particular, provisions modifying and supplementing, in relation to the period to which the order is to apply, the provisions of this Act or any Act amended by this Act.

(3) The power to make orders under this section shall be exercisable by statutory instrument and shall include power to vary or revoke any order so made by a subsequent order.

9.—(1) Except in such cases as may be prescribed by regulations made by the Minister, and subject to such conditions as may be so prescribed, where an award of an allowance under the Family Allowances Act, 1945, or an award of any benefit under the Industrial Injuries Act or the National Insurance Act, 1946, is in force on the day appointed or prescribed for the payment of allowances or benefit of the description to which the award relates at a higher weekly rate by virtue of this Act or any regulations made in consequence of this Act, the allowance or benefit shall, without any claim being made therefor, become payable, as from that day, at the higher weekly rate, and the award shall have effect accordingly.

Effect of awards made before, or in respect of period beginning before, appointed or prescribed day.

(2) Where any such award as aforesaid—

(a) is made after a day has been appointed or prescribed for the payment of allowances or benefit of the description to which the award relates at a higher weekly rate, or within a higher maximum weekly rate, by virtue of this Act or any regulations made in consequence of this Act, and

(b) is made before that day,

the award may provide for the allowance or benefit to be paid, as from that day, at the higher weekly rate or, as the case may be, at any weekly rate within the higher maximum rate.

(3) The powers to make regulations under the preceding provisions of this section shall be exercised separately in relation to the Family Allowances Act, 1945, the Industrial Injuries Act and the National Insurance Act, 1946.

(4) Any regulations made in consequence of this Act varying the scale of disablement gratuities prescribed under subsection (6) of section twelve of the Industrial Injuries Act may provide that the scale as varied shall only apply in cases where the period taken into account by the assessment of the extent of the disablement in respect of which the gratuity is awarded begins or began after such day as may be prescribed.

10. There shall be defrayed out of moneys provided by Parliament any increase in the sums payable out of moneys so provided under—

(a) section one or section twenty of the Family Allowances Act, 1945 ;

(b) paragraph (b) of section two or subsection (1) of section sixty of the Industrial Injuries Act ; or

Expenses.

- (c) subsection (3) of section two of the National Insurance Act, 1946 (as amended by section one of the National Insurance Act, 1951), or subsection (1) of section thirty-eight or subsection (4) of section sixty-two of the National Insurance Act, 1946 ;

which is attributable to any provision made by this Act for increasing any rates of allowances under the Family Allowances Act, 1945, or rates or amounts of contributions or benefits under the Industrial Injuries Act or the National Insurance Act, 1946.

Regulations.

11.—(1) Any power conferred by this Act to make regulations shall be exercisable by statutory instrument, and any instrument containing any such regulation shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(2) In the application of section seventy-seven of the National Insurance Act, 1946 (which relates to the consideration of regulations by the Advisory Committee), to any regulations made under a power conferred by this Act, the reference in subsection (5) of that section to regulations being laid before Parliament in pursuance of section seventy-six of that Act shall be construed as a reference to regulations being laid before Parliament in pursuance of the preceding subsection.

**Short title,
construction,
citation and
extent.**

12.—(1) This Act may be cited as the Family Allowances and National Insurance Act, 1952.

(2) This Act—

(a) so far as it relates to the Family Allowances Act, 1945, shall be construed as one with that Act and may be cited together with that Act as the Family Allowances Acts, 1945 and 1952 ;

(b) so far as it relates to the Industrial Injuries Act, shall be construed as one with that Act and may be cited together with that Act, the National Insurance (Industrial Injuries) Act, 1948, and the National Insurance Act, 1951 (so far as it relates to the Industrial Injuries Act) as the National Insurance (Industrial Injuries) Acts, 1946 to 1952 ;

(c) so far as it relates to the National Insurance Act, 1946, shall be construed as one with that Act and may be cited together with that Act, the National Insurance Act, 1949, and the National Insurance Act, 1951 (so far as it relates to the National Insurance Act, 1946) as the National Insurance Acts, 1946 to 1952.

(3) Without prejudice to the operation, in relation to any matters arising out of this Act, of any provision relating to Northern Ireland of the Family Allowances Act, 1945, the Industrial Injuries Act or the National Insurance Act, 1946, this Act shall not extend to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

Section 2.

CONTRIBUTION RATES SUBSTITUTED FOR THOSE
CONTAINED IN PART I OF SECOND SCHEDULE TO
INDUSTRIAL INJURIES ACTWEEKLY RATES OF CONTRIBUTIONS PAYABLE BY INSURED
PERSONS AND EMPLOYERS

Class of insured person to whom rate applies	Weekly rate of contribution	
	By the insured person	By the employer
Men over the age of eighteen ...	4d.	5d.
Women over the age of eighteen ...	3d.	3d.
Boys under the age of eighteen ...	3d.	3d.
Girls under the age of eighteen ...	2d.	2d.

SECOND SCHEDULE

Section 3.

AMENDMENTS OF BENEFIT PROVISIONS OF INDUSTRIAL
INJURIES ACT

Amended provision	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Section 11 (3)	Weekly rates of injury benefit—		
	(a) for beneficiaries over 18 or with dependants,	forty-five shillings	fifty-five shillings
	(b) for beneficiaries between 17 and 18 without depen- dants,	thirty-three shil- lings and nine- pence	forty-one shillings and threepence
	(c) for beneficiaries under 17 without dependants.	twenty-two shil- lings and six- pence	twenty-seven shil- lings and six- pence
Section 12 (6)	Maximum amount of disablement gratuity for disablement of less than twenty per cent.	one hundred and fifty pounds	one hundred and eighty - five pounds

2ND SCH.
—cont.

Amended provision	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Third Schedule (applied by s. 12 (7))	Weekly rates of disablement pension for degrees of disablement of— 100 per cent. ... 90 per cent. ... 80 per cent. ... 70 per cent. ... 60 per cent. ... 50 per cent. ... 40 per cent. ... 30 per cent. ... 20 per cent. ...	45 shillings 40 shillings and 6 pence 36 shillings 31 shillings and 6 pence 27 shillings 22 shillings and 6 pence 18 shillings 13 shillings and 6 pence 9 shillings	55 shillings 49 shillings and 6 pence 44 shillings 38 shillings and 6 pence 33 shillings 27 shillings and 6 pence 22 shillings 16 shillings and 6 pence 11 shillings
Section 13 (1)	Amounts by which weekly rates of disablement pension are increased on account of unemployment— (a) for beneficiaries over 18 or with dependants, (b) for beneficiaries between 17 and 18 without dependants, (c) for beneficiaries under 17 without dependants.	twenty shillings fifteen shillings ten shillings	thirty-two shillings and six pence twenty shillings twenty shillings
Section 15 (2)	Maximum amount of increase of weekly rate of disablement pension where constant attendance is needed— (a) in cases other than those of exceptionally severe disablement, (b) in cases of exceptionally severe disablement.	twenty shillings forty shillings	twenty-five shillings fifty shillings

2ND SCH.
—cont.

Amended provision	Description of rates and amounts of benefit	Existing rate or amount	New rate or amount
Section 17 (1) (as amended by s. 3 of National Insurance Act, 1951)	Amount of increase of weekly rates of injury benefit or (in certain cases) disablement pension in respect of only, elder or eldest child.	ten shillings	ten shillings and sixpence
Section 18 (1)	Amount of increase of weekly rates of injury benefit or (in certain cases) disablement pension in respect of adult dependant.	sixteen shillings	twenty-one shillings and sixpence
Section 19 (3)	Weekly rate of widow's pension payable in circumstances specified in the subsection.	thirty shillings	thirty-seven shillings
Section 19 (4)	Maximum higher weekly rate of widow's pension payable for prescribed period after deceased's death.	thirty-six shillings	forty-two shillings and sixpence
Section 20 (2)	Weekly rate of widower's pension.	thirty shillings	thirty-seven shillings
Section 21 (1) (as amended by s. 3 of National Insurance Act, 1951)	Weekly rate of death benefit in respect of only, elder or eldest child.	ten shillings	ten shillings and sixpence

Section 4.

THIRD SCHEDULE

CONTRIBUTION RATES SUBSTITUTED FOR THOSE
CONTAINED IN FIRST SCHEDULE TO NATIONAL
INSURANCE ACT, 1946

CONTRIBUTION RATES

PART I

EMPLOYED PERSONS

Description of employed person	Weekly Rate of Contribution
	s. d.
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment)—	
Earning remuneration at a weekly rate exceeding 30s.	5 5
Earning remuneration at a weekly rate of 30s. or less	3 2
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment)—	
Earning remuneration at a weekly rate exceeding 30s.	4 3
Earning remuneration at a weekly rate of 30s. or less	2 7
Boys under the age of 18... ..	3 2
Girls under the age of 18... ..	2 7

For the purpose of this Part and Part II of this Schedule a person shall be deemed to be earning remuneration at a weekly rate of thirty shillings or less if, but only if, his remuneration does not include the provision of board and lodging by the employer and the rate of the remuneration does not exceed thirty shillings a week, and to be earning remuneration at a weekly rate exceeding thirty shillings in any other case.

PART II

EMPLOYERS

3RD SCH.
—cont.

Description of employed person	Weekly Rate of Contribution
	s. d.
Men over the age of 18—	
Earning remuneration at a weekly rate exceeding 30s. or not being liable to pay a contribution as an employed person	4 7
Earning remuneration at a weekly rate of 30s. or less and being liable to pay a contribution as an employed person	6 10
Women over the age of 18—	
Earning remuneration at a weekly rate exceeding 30s. or not being liable to pay a contribution as an employed person	3 8
Earning remuneration at a weekly rate of 30s. or less and being liable to pay a contribution as an employed person	5 4
Boys under the age of 18	2 9
Girls under the age of 18... ..	2 2

For the purpose of this Part of this Schedule a person over pensionable age, not being an insured person, shall be treated as an employed person if he would be an insured person were he under pensionable age and would be an employed person were he an insured person.

PART III

SELF-EMPLOYED PERSONS

Description of self-employed person	Weekly Rate of Contribution
	s. d.
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment)	7 5
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment)	6 2
Boys under the age of 18... ..	4 4
Girls under the age of 18... ..	3 9

3RD SCH.
—cont.

PART IV
NON-EMPLOYED PERSONS

Description of non-employed person	Weekly Rate of Contribution	
	s.	d.
Men between the ages of 18 and 65	5	7
Women between the ages of 18 and 60	4	5
Boys under the age of 18... ..	3	3
Girls under the age of 18... ..	2	8

PART V
EXCHEQUER SUPPLEMENT

Description of person by or in respect of whom contribution is paid	Amount of supplement			
	For contribution as employed person	For employer's contribution	For contribution as self- employed person	For contribution as non- employed person
	s. d.	s. d.	s. d.	s. d.
Men over the age of 18	9	9	9½	9
Women over the age of 18	7	6½	7½	7
Boys under the age of 18	5	5	5	5
Girls under the age of 18	4	4	4	4

FOURTH SCHEDULE

Section 5.

BENEFIT RATES SUBSTITUTED FOR THOSE CONTAINED
IN PART I OF SECOND SCHEDULE TO NATIONAL
INSURANCE ACT, 1946

RATES OF PERIODICAL BENEFITS AND OF INCREASES FOR DEPENDANTS

Description of benefit	Weekly rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
1. Unemployment benefit— (a) in the case of a person over the age of eighteen, not being a married woman ...	32 6	10 6	2 6	21 6
(b) in the case of a person under the age of eighteen, not being a married woman—				
(i) during any period during which that per- son is entitled to an increase of benefit in respect of a child or adult dependant ...	32 6	10 6	2 6	21 6
(ii) during any other period	20 0	—	—	—
(c) in the case of a married woman over the age of eighteen—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is not residing with and is unable to obtain any financial assistance from her husband	32 6	10 6	2 6	21 6
(ii) during any other period	26 0	10 6	2 6	21 6
(d) in the case of a married woman under the age of eighteen—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is entitled to an increase of benefit in respect of a child or an				

4TH SCH.
—cont.

Description of benefit	Weekly rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
adult dependant other than her husband and she is not residing with and is unable to obtain any financial assistance from her husband ...	32 6	10 6	2 6	21 6
(ii) during any other period during which she is entitled to an increase of benefit in respect of a child or adult dependant ...	26 0	10 6	2 6	21 6
(iii) during any other period ...	20 0	—	—	—
2. Sickness benefit—				
(a) in the case of a person over the age of eighteen, not being a married woman ...	32 6	10 6	2 6	21 6
(b) in the case of a person under the age of eighteen, not being a married woman—				
(i) during any period during which that person is entitled to an increase of benefit in respect of a child or adult dependant ...	32 6	10 6	2 6	21 6
(ii) during any other period ...	20 0	—	—	—
(c) in the case of a married woman over the age of eighteen—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is not residing with and is unable to obtain any financial assistance from her husband ...	32 6	10 6	2 6	21 6
(ii) during any other period ...	22 0	10 6	2 6	21 6

4TH SCH.
—cont.

Description of benefit	Weekly rate	Increase for only child or elder or eldest child (where payable)	Increase for each additional child (where payable)	Increase for adult dependant (where payable)
	s. d.	s. d.	s. d.	s. d.
(d) in the case of a married woman under the age of eighteen—				
(i) during any period during which she is entitled to an increase of benefit in respect of her husband, or during which she is entitled to an increase of benefit in respect of a child or an adult dependant other than her husband and she is not residing with and is unable to obtain any financial assistance from her husband	32 6	10 6	2 6	21 6
(ii) during any other period during which she is entitled to an increase of benefit in respect of a child or adult dependant	22 0	10 6	2 6	21 6
(iii) during any other period	20 0	—	—	—
3. Attendance allowance ...	20 0	—	—	—
4. Maternity allowance ...	36 0	—	—	—
5. Widow's allowance ...	42 6	10 6	2 6	—
6. Widowed mother's allowance	43 0	—	2 6	—
7. Widow's pension ...	32 6	—	—	—
8. Guardian's allowance ...	15 0	—	—	—
9. Retirement pension—				
(a) where the pension is payable to a woman by virtue of her husband's insurance and he is alive ...	21 6	10 6	2 6	—
(b) in any other case ...	32 6	10 6	2 6	21 6

Section 6.

FIFTH SCHEDULE

CONSEQUENTIAL AMENDMENTS OF FAMILY
ALLOWANCES ACT, 1945, INDUSTRIAL INJURIES ACT,
NATIONAL INSURANCE ACT, 1946, AND NATIONAL
INSURANCE ACT, 1951

Amended provision	Amendment
Family Allowances Act, 1945—	
Section 3	In subsection (2) for the words “ five shillings ” there shall be substituted the words “ eight shillings ”.
Schedule	In sub-paragraph (1) of paragraph 1 for the words “ five shillings ” there shall be substituted the words “ eight shillings ”.
Industrial Injuries Act—	
Section 14	In subsection (3) for the words “ forty-five shillings ” there shall be substituted the words “ fifty-five shillings ”.
Section 29	In paragraph (a) of subsection (1) (as amended by the National Insurance (Industrial Injuries) Act, 1948) for the words “ forty-five shillings ”, in both places where those words occur, there shall be substituted the words “ fifty-five shillings ”; for the words “ thirty-three shillings and ninepence ” there shall be substituted the words “ forty-one shillings and threepence ”; and for the words “ twenty-two shillings and sixpence ” there shall be substituted the words “ twenty-seven shillings and sixpence ”.
Section 30	In subsection (2) (as amended by the Schedule to the National Insurance Act, 1951) for the words “ ten shillings ” there shall be substituted the words “ ten shillings and sixpence ”.
Fourth Schedule ...	In sub-paragraph (1) and sub-paragraph (2) of paragraph 1 (as amended by the Schedule to the National Insurance Act, 1951) for the words “ ten shillings ” there shall be substituted the words “ ten shillings and sixpence ”.

5TH SCH.
—cont.

Amended provision	Amendment
National Insurance Act, 1946—	
Section 17	In subsection (3) (as amended by section two of the National Insurance Act, 1951) for the words “thirty shillings” there shall be substituted the words “thirty-two shillings and sixpence” and for the words “forty shillings”, in the second place where they occur, there shall be substituted the words “forty-three shillings”.
Section 23	In paragraph (b) of subsection (3) (as amended by the Schedule to the National Insurance Act, 1951) for the words “ten shillings” there shall be substituted the words “ten shillings and sixpence”.
Section 26	In subsection (1) for the words “twenty-six shillings” there shall be substituted the words “thirty-two shillings and sixpence”.
National Insurance Act, 1951—	
Section 4	Subsection (2) shall cease to have effect.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Family Allowances Act, 1945	8 & 9 Geo. 6. c. 41.
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
National Insurance (Industrial Injuries) Act, 1948	11 & 12 Geo. 6. c. 42.
National Insurance Act, 1949	12, 13 & 14 Geo. 6. c. 56.
National Insurance Act, 1951	14 & 15 Geo. 6. c. 34.